

To have and to hold the above described property, together with all and singular the rights and appurtenances thereto in anywise belonging unto the said Grantee herein, and Grantee's successors, heirs, executors and administrators, to warrant and forever defend all and singular the said property unto the said Grantee herein and Grantee's successors, heirs, and assigns, against every person whomsoever lawfully claiming or to claim the same or any part thereof.

Witness my hand this the 23 day of April A.D. 1938.

S.F. Denius

THE STATE OF TEXAS !

COUNTY OF POLK ! BEFORE ME, the undersigned authority, a Notary Public in and for Polk County, Texas, on this day personally appeared S.F. Denius, known to me to be the person whose name is subscribed to the foregoing instrument and acknowledged to me that he executed the same for the purposes and consideration therein expressed.

Given under my hand and seal of office this 23 day of April, 1938.

(Seal)

Mrs. Edna Whisenhunt
Notary Public in and for Polk County, Texas

Filed for record in my office on the 30th day of July 1938. at 4:30 o'clock P.M., and was this day duly recorded at 11:30 o'clock. Deed Records of said County.

Witness my hand and official seal at office

Aug., 1938.

(Seal)

WBTS Railway
land conveyed to
EW Spletstoesser
12.38 WP Valentine
2.60 JH Parsons
14.98 acres

, Texas

Deputy

Paul T. Sanderson, Receiver, et al To E.W. Spletstoesser

Deed

THE STATE OF TEXAS !

COUNTY OF POLK !

KNOW ALL MEN BY THESE PRESENTS:

That we, Waco, Beaumont, Trinity & Sabine Railway Company, acting herein by R.C. Duff its duly authorized President, and Paul T. Sanderson, Receiver of Waco, Beaumont, Trinity & Sabine Railway Company, acting under and by virtue of an order heretofore entered by the District Court in and for Trinity County, Texas, on the 15 day of July 1938, for and in consideration of the sum of One Hundred Forty Nine and 80/100 (\$149.80) Dollars cash to Paul T. Sanderson, Receiver, in hand paid by E.W. Spletstoesser, the receipt whereof is hereby acknowledged, and the promise and agreement on the part of the said E.W. Spletstoesser to assume and pay all taxes assessed against said property for the year 1938, Have granted, bargained, sold and conveyed, and by these presents do grant, bargain, sell and convey unto the said E.W. Spletstoesser, of Trinity County, Texas, the following described property, to-wit;

✓ All that certain tract or parcel of land lying and being situate in the County of Polk and State of Texas, out of and part of the W.P. Valentine and the J.H. Parsons surveys more particularly described by metes and bounds as follows; W.B.T. & S. Ry. right of way.

Beginning at a point in the center line of said right of way known as Engineer's Station 2192.18, being the W.B. line of the W. P. Valentine Survey;

Thence north on said Valentine west line to a point 100 feet from center of said right of way;

Thence in an easterly direction, following curve of said right of way and keeping 100 feet from center line of same, to W.B. line of the J.H. Parsons Survey, 2697 feet to

Vol 114
Pg 141-143

s Station 2219.15;
Thence south on J.H. Parsons west line 50 feet;
Thence east on north line of said right of way 1135 feet to McManus Creek Engineer's
Station 2230.50;
Thence south along McManus Creek 100 feet to the south line of said right of way;
Thence west on said right of way line 1135 feet to J.H. Parsons west line;
Thence south 50 feet on said Parsons West line;
Thence west 2697 feet following curve said right of way, and keeping 100 ft from center
line of same to W.B. line of W.P. Valentine Survey;
Thence north on said Valentine west line to place of beginning; said right of way being
200 feet wide on W.P. Valentine survey, and 100 feet wide on J.H. Parsons survey, making the
land hereby conveyed approximately 12.38 acres out of the W.P. Valentine, and 2.60 acres
out of the J.H. Parsons survey, a total of 14.98 acres.

RESERVING AND EXCEPTING in favor of the grantors herein, their successors and assigns
forever, a 1/16 royalty interest in and to all of the oil, gas and minerals that may be
produced from the above described lands, it being understood that this 1/16 royalty interest
is 1/2 of the usual 1/8 royalty retained by the owners of lands in leasing same for oil and
gas purposes.

This conveyance is made by the grantors, herein under and by virtue of authority given
and granted in the aforesaid order of the District Court in and for Trinity County, Texas,
dated the 15th day of July 1938, which said order is duly of record in the Civil Minutes of
the District Court of Trinity County, Texas, and to which said order and its record reference
is here now made for all purposes.

TO HAVE AND TO HOLD the above described property, together with all and singular the
rights and appurtenances thereto in anywise belonging, unto the said E.W. Spletstoeser,
his heirs and assigns forever, subject to the limitations and exceptions hereinabove con-
tained, as fully and as absolutely as we, the undersigned grantors, can convey by virtue of
the aforesaid order of said court.

In Testimony whereof, Waco, Beaumont, Trinity & Sabine Railway Company has caused these
presents to be executed by its President, R.C. Duff, and to be attested by its Secretary, H.R.
Saye, and said Paul T. Sanderson, Receiver, as aforesaid, has subscribed his name hereto, on
this 19 day of July 1938.

Attest;

WACO, BEAUMONT, TRINITY & SABINE
RAILWAY COMPANY

Secretary

By R.C. Duff
President
Paul T. Sanderson
Receiver

THE STATE OF TEXAS |

COUNTY OF HARRIS | BEFORE ME, the undersigned authority, on this day personally appeared
R.C. Duff, known to me to be the person and officer whose name is subscribed to the above
and foregoing instrument, and acknowledged to me that he executed the same for the purposes
and consideration therein expressed, in the capacity therein stated, and as the act and deed
of said Waco, Beaumont, Trinity & Sabine Railway Company.

Given under my hand and seal of office, this the 19 day of July 1938.

(Seal)

Luther N. Hull
Notary Public, Harris County, Texas

THE STATE OF TEXAS
COUNTY OF TRINITY

BEFORE ME, the undersigned, authority, on this day personally appeared Paul T. Sanderson, known to me to be the person whose name is subscribed to the foregoing instrument, and acknowledged to me that he executed the same for the purposes and consideration therein expressed, and in the capacity therein stated.

Given under my hand and seal of office, this the 18th day of July 1938.

(Seal)

Margaret Lipscomb
Notary Public, Trinity County, Texas

Filed for record in my office on the 1st day of Aug. 1938, at 8 o'clock A.M., and was this day duly recorded at 2:45 o'clock P.M., in Vol. 114, pages 141, et seq., Deed Records of said County.

Witness my hand and official seal at office in Livingston this 11th day of Aug. 1938.

(Seal)

C.B. Marsh
Clerk County Court Polk County, Texas

By Mrs C. Matthews Deputy

L.C. Murphy et ux To Kirby Lumber Corporation

Acknowledgment of Tenancy

THE STATE OF TEXAS
COUNTY OF POLK

KNOW ALL MEN BY THESE PRESENTS:

THAT we, L.C. Murphy & wife, Janie Murphy of the County and State aforesaid, for and in consideration of the use, occupancy and enjoyment, rent free, of the following described tract or parcel of land, to-wit; 146.3 acres of land, more or less, a part of Abstract No. 3, H.W. Augustine Survey in Polk County, Texas, and being the same land in said survey which was conveyed by McDonald Meachum, Trustee and Kirby Lumber Company to Kirby Lumber Corporation by deed dated July 14, 1936, recorded in Volume 108, page 137, et seq. of the Deed Records of Polk County, Texas, and to which deed and the record thereof reference is hereby made for full particulars, said land being situated in Polk County, in the State of Texas, do hereby acknowledge that we are tenants at will of Kirby Lumber Corporation, a corporation the owner of the above described tract of land, and we hereby agree to look after said land and protect same from trespassers so far as we can, it being understood that we do not own or claim any right, title or interest in any portion of said above described tract of land, except as tenants at will and by sufferance of said Kirby Lumber Corporation; this lease can only be terminated by lessees by actual surrender of possession with written notice to Kirby Lumber Corporation with a copy of such notice filed in the deed records of said county, all of which three things must be done before lessee can terminate or repudiate this lease; and for the considerations aforesaid we and each of us do hereby release and quitclaim the above described tract of land unto said Kirby Lumber Corporation, its successors and assigns, forever.

Witness our hands this 13 day of July A.D. 1938.

Witnesses;

L.C. Murphy
Jane Murphy

THE STATE OF TEXAS
COUNTY OF POLK

BEFORE ME, the undersigned authority, on this day personally appeared L.C. Murphy, known to me to be the person whose name is subscribed to the foregoing instrument, and acknowledged to me that he executed the same for the purposes and consideration therein expressed.

Given under my hand and seal of office this 13 day of July A.D. 1938.